

SENATE No. 62

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing community fridges to address food insecurity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/17/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>3/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>

SENATE No. 62

By Mr. Gómez, a petition (accompanied by bill, Senate, No. 62) of Adam Gómez and Homar Gómez for legislation to establish community fridges to address food insecurity. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 44 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing community fridges to address food insecurity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 328 of chapter 94 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the fourth paragraph the following new
3 paragraph:-

4 “Community fridge,” is defined as a working refrigerator in a publicly accessible location
5 in which any person or organization can donate food into or remove food from for the purposes
6 of alleviating food insecurity. Each community fridge shall have a designated manager or
7 managing organization which may include a volunteer, a nonprofit, or a government official
8 designee. This manager is responsible for managing the cleanliness and sanitary condition of the
9 fridge according to the department of public health. The department of public health shall
10 provide advisory guidelines and interpretations for the safe and sanitary storage of such food.

The placement of community fridges will be prioritized in areas of high food insecurity, including disproportionately impacted areas and food deserts. If data on food insecurity is unavailable, then placement will be prioritized in low-income areas. Further, community fridges shall be equitably distributed throughout each geographic region of the Commonwealth.

SECTION 2. Section 328 of chapter 94 of the General Laws, as appearing in the 2022 Official Edition, is hereby further amended by inserting after the third paragraph the following paragraph:-

No food establishment, as defined in 105 CMR 590 et seq., which distributes or serves food without charge or at a charge sufficient only to cover the cost of handling such food, including open-dated food whose date has passed, shall be liable for civil damages for any injury arising out of the condition of such food; provided, however, that at the time of distribution or serving such food is not misbranded or adulterated or has not been manufactured, processed, prepared, handled or stored in violation of applicable regulations of the department of public health, and provided, further, that such injury is not the result of gross negligence, recklessness or intentional misconduct of the food establishment or any person employed by or under the control of the food establishment.